



Maritime &
Coastguard
Agency

Guidance

MIN 640 Amendment 1 (F) Construction standards for fishing vessels of less than 15m LOA - outfitting of fishing vessels of less than 7m LOA

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Summary

This information Note reminds builders, owners and Fishing Vessel Certifying Authorities that fishing vessels of less than 7m LOA, whilst not requiring an Outfit Certificate, must be outfitted or have their outfit modified in accordance with the requirements of MGN 628 Amendment 1 – The Construction Standards for Fishing Vessels of less than 15m Length Overall. This Notice updates references to documents this Note.

1. Introduction/background

1.1 All new Fishing Vessels of less than 15m Length Overall (LOA) are required by MSN1871 Amendment 2 (<https://www.gov.uk/government/publications/msn-1871-amendment-no-2-f-the-code-of-practice-for-the-safety-of-small-fishing-vessels-of-less-than-15m-length-overall>) and the Code of Practice for the Safety of Fishing Vessels of less than 15m LOA (<https://www.gov.uk/government/publications/the-code-of-practice-for-the-safety-of-small-fishing-vessels-of-less-than-15m-length-overall>) (the Code of Practice) to be built to MGN 628 Amendment 1 – The Construction and Outfit Standards for Fishing Vessels of less than 15m LOA (<https://www.gov.uk/government/publications/mgn-628-mf-amendment-1-construction-and-outfit-standards-for-fishing-vessels-of-less-than-15m-length-overall>) (the Construction and Outfit Standards).

1.2 Fishing Vessels of less than 7m Length Overall (LOA) are only required to provide a Hull Construction Certificate to the MCA as evidence of compliance with the Construction and Outfit Standards.

1.3 However, the MCA have identified circumstances where vessels are being presented for first inspection which do not comply with the Outfit Standards set out in the Construction and Outfit Standards.

2. Compliance with Outfit Standards for New Fishing Vessels of less than 7m LOA

2.1 Builders and Owners are reminded that although a Certificate of Outfit is not required, the outfitting of these vessels must be in compliance with the requirements of the Construction and Outfit Standards.

2.2 This is not a new requirement, but standard practice, and Owners and Builders must be aware of this requirement when constructing the vessel, outfitting the vessel and subsequently presenting the vessel for inspection. Owners and Builders are reminded that, where the outfit has the potential to affect the validity of the Hull Construction Certificate, the approved plans should be followed. In the absence of approved plans, advice should be sought from someone with experience of the Construction and Outfit Standards, for example the builder. Where possible non-compliance with the Construction and Outfit Standards or MSN 1871 Amendment 2 and the Code of Practice is anticipated, then advice from the Fishing Vessel Certifying Authority (<https://www.gov.uk/guidance/fishing-vessel-certifying-authorities>) (FVCA) or MCA (whichever is the survey authority) should be sought at the earliest stage and certainly prior to work proceeding.

2.3 Where doubts exist with regard to ensuring that the vessel is compliant, particularly where an owner is undertaking the outfit themselves, then the requirements should be verified with someone with experience of the requirements contained in the Construction and Outfit Standards for example the FVCA or builder.

2.4 Examples of instances where outfit has not been to the requirements include:

- Freeing ports have been considered part of the outfit. The Construction and Outfit Standards clearly state freeing ports are within the Construction requirements.

- Where a vessel is constructed and certified as an open vessel, if a deck is subsequently fitted, the requirements for a decked vessel throughout the Construction and Outfit Standards must be met. The minimum freeboard depth for decked vessels is 200mm. If the freeboard is less than 200mm, then the vessel will continue to be an open vessel with an unsealed or sealed sole. A combination of requirements taken from the Construction and Outfit Standards for decked and open will not be accepted.
- Additions to the fixed permanent structure which have affected the registered and overall length of the vessel. Owners and builders are therefore reminded that the requirements for the measurement of fishing vessels are set out in the Fishing Vessels Instructions for the Guidance of Surveyors, MSIS27 Chapter 1 Annex 3 (<https://www.gov.uk/government/publications/survey-and-inspection-of-fishing-vessels-chapter-1-annexes-msis-27>).

2.5 Any owners presenting new vessels for inspection to the MCA may be refused certification and be unable to register their vessels until the Outfit standards have been met.

3. Compliance with Outfit Standards for Existing vessels of less than 7m LOA undergoing modification

3.1 Any existing vessels being modified are required by MSN1871 Amendment 2 and the Code of Practice to notify the MCA for approval prior to any work commencing.

3.2 This approval will only be given if the vessel complies with the requirements in the Construction and Outfit Standards. Vessels that are subsequently inspected and are found not to have been modified in accordance with the Construction and Outfit Standards may have their Certificate suspended or be prohibited from fishing until the vessel meets those standards.

More information

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